HUNGWE MINING SYNDICATE
and
WORKERS CONSORTIUM MINING SYNDICATE
and
MARTINMANG MINING SYNDICATE
and
MASHONALAND MINING SYNDICATE
and
VISION 2030 MINING SYNDICATE
and
KAT MINING SYNDICATE
and
BATMAN MINING SYNDICATE
and
SANDSPRING MINING SYNDICATE
and
NUCLEOUS MINING SYNDICATE
and
RUFARO MINING SYNDICATE
and
COMMONWEALTH MINING SYNDICATE
and
MMS MINING SYNDICATE
and
STONEMABLE MINING SYNDICATE
and
JCB MINING SYNDICATE
and
MADSAY INVESTMENT PRIVATE LIMITED
and
LICANTA MINING PRIVATE LIMITED
and
SOS WEST MINING SYNDI
and
GUDGAL MINING SYNDICATE
and
GABRIELLA MINING SYNDICATE
versus
THE MINISTRY OF MINES AND MINING DEVELOPMENT
and
THE CHIEF GOVERNMENT MINING ENGINEER
and
ASSISTANT COMMISSINER ENOCK MASIMBA
and
ASSISTANT COMMISSIONER BAZIBI DUBE
and
MAZOWE MINING COMPANY

HIGH COURT OF ZIMBABWE
MANYANGADZE J
HARARE, 7 July & 24 September 2025

Urgent chamber application

RG Gumbo, for the applicants
C Masoka, for the 1st to 4th respondents
L Uriri, for the 5th respondent

MANYANGADZE J:

INTRODUCTION

The applicants seek an interdict against the respondents. They want a provisional order in the following terms:

> "**A. Terms of final order sought**
>
> That you show cause if any, why a final order should not be made in the following terms.
>
> i) That the respondents and all people acting under their authority be and are hereby interdicted from carrying out illegal evictions of the applicants and their workers at their respective mining locations within Lease 35 Jumbo, Mazowe.
>
> ii) That the respondents or any people under their authority be and are hereby interdicted from destroying applicants' mining equipment and allied equipment and their property and possessions and from closing the mining pits operated on by the applicants.
>
> The 1st and 2nd respondents to pay the costs of this application on the legal practitioner/ client scale.
>
> **B. Interim Relief Granted**
>
> Pending the final determination of this matter the following interim relief is granted.
>
> i) The 1st to 4th respondents are hereby interdicted from carrying out their illegal threatened eviction of the applicants and their employees from their respective mining areas in Lease 35 Jumbo, Mazowe without a court order.

ii) 1st to 4th respondents are further interdicted in the interim from carrying out their threats to destroy applicants' mining equipment and close their pits without a court order."

FACTUAL BACKGROUND

The applicants are a group of mining syndicates operating in the Mazowe area, which is under Mazowe Mining Company's Mining Lease No. 35.

The second respondent issued an order for the suspension of mining operations in the mining area in question. This was done for safety reasons, as there were numerous reports of accidents arising from the applicants' mining activities. The second respondent, as the regulatory authority, acted in terms of the Mines and Minerals Act and regulations made thereunder.

The applicants aver that they are in occupation of their respective mining locations lawfully and are entitled to carry out mining operations. They contend that since they were granted spoliatory relief by this court in February 2024, they should not be prohibited from carrying out their mining activities in that area.

POINTS *IN LIMINE*

The fifth respondent has raised six points *in limine*. These are that:

(i) The applicants have cited a non-existent party
(ii) The applicants have used the wrong form
(iii) The applicants have approached the court with dirty hands
(iv) The deponents to the applicants' founding affidavits have no authority
(v) The applicants cannot interdict a lawful process
(vi) The matter is not urgent

Non-existent party

Under this point, the fifth respondent avers that the applicants have committed a fatal irregularity by citing the Ministry of Mines and Mining Development ("the Ministry") instead of the Minister. They contend that it is the Minister who is clothed with the legal capacity to sue or defend suits on behalf of Government. This is provided for in the State Liabilities Act [Chapter 8:14], section 3 thereof.

Failure to cite the correct respondent renders the application void *ab initio*, as the Ministry is not a legal *persona*.

In countering this averment, the applicants contend that the State Liabilities Act does not make it peremptory to cite the Minister. It is discretionary. This is so because the statute uses the word "may" instead of "shall". The application cannot therefore be rendered fatally defective by reason of this irregularity alone.

Further to that, the applicants aver that the non-citation of the Minister does not vitiate the application, as there are other respondents who are not affected by this irregularity.

THE LAW

The legal position is that a plaintiff or an applicant cannot sue a non-existent entity. In this regard, the court has been referred to the case of *Fadzai John* v *Delta Beverages* SC 40/17. GUVAVA JA stated, at p 4-5:

> "The respondent highlighted that it has been cited as "Delta Beverages Limited" as opposed to Delta Beverages (Private) Limited. Applicant concedes this point in his answering papers.
>
> In *Gariya Safaris (Pvt) Ltd v van Wyk*[1] it was stated as follows:
>
> "A summons has legal force and effect when it is issued by the plaintiff against an existing legal or natural person. If there is no legal or natural person answering to the names written in the summons as being those of the defendant, the summons is null and void *ab initio."*
>
> In this case the applicant cited a non-existent respondent. Thus in the same vein the application was a nullity."

In *K and G Mining Syndicate* v *Mugangavari & Ors* HB 159/20, Dube-Banda J was seized with a similar question, this time within the context of a mining dispute in which the Ministry was cited instead of the Minister. The learned judge made the following pertinent remarks, at p 5 and 6, with which I fully associate:

> "Is the Ministry of Mines and Mining Development a *legal persona*? In terms of section 3 of the State Liabilities Act [*Chapter 8:14*] in any action or other proceedings which are instituted by virtue of section two, the plaintiff, the applicant or the petitioner, as the case may be, may make the Minister to whom the headship of the Ministry or department concerned has been assigned nominal defendant or respondent. Applicant concedes that in terms of this provision, it is incorrect to cite the Ministry, the proper third respondent in case HC 2031/15 must have been the Minister, not the Ministry. The Ministry is not a legal persona, capable of being sued." (underlining added for emphasis)

The learned judge went on to refer to the often-cited case of *Fadzai John* v *Delta Beverages*, *supra*, and other authorities, wherein the same point was underscored, at 6:

> "*In Fadzai John* v *Delta Beverages* SC 40/17 the court observed at page 4 that: "In *Gariya Safaris (Pvt) Ltd* v *van Wyk* 1996 (2) ZLR 246 (H) it was stated as follows: 'A summons has legal force and effect when it is issued by the plaintiff against an existing legal or natural person. If there is no legal or natural person answering to the names written in the summons as being those of the defendant, the summons is null and void *ab initio.*" In this case number HC 2031/15 the applicant cited a non-existent third respondent. See *Amos Makono & 32 Others v Freda Rebecca Gold Mine* HH 400 / 18, *Masuka* v *Delta Belverages* HB 2012 (1)

ZLR 112, *Masukume* v *Treston Enterprise (Pvt) Ltd* HH 416/15, *Nuvert Trading (Pvt) Ltd* v *Hwange Colliery* HH 791/15, *CT Bolts (Pvt) Ltd* v *Workers' Committee* 2012 (1) ZLR 363 (S), *Gariya Safaris (Pvt) Ltd* v *van Wyk* 1996 (2) ZLR 246 (H) all referred to by the applicant; *Marange Resources (Private) Limited* v *Core Mining & Minerals (Private) Limited (in liquidation) & Ors* SC 37/16 and *Stewart Scott Kennedy* v *Mazongororo Syringes (Pvt) Ltd* 1996 (2) ZLR 565 (S).)

APPLICATION OF THE LAW

From the above case authorities, and the numerous other cases referred to therein, it is clear that the citation of a non-existent entity, an entity with no legal *persona*, deals a fatal blow to an action or application. The applicants cannot opt, as they contend, to sue a non-existent entity. For their application to be valid, the entity sued must be clothed with legal *persona*. If it is not a legal *persona*, then the application is incurably defective.

The argument that the first respondent is not the only respondent cited does not save the application. It is vitiated by the citation of the first respondent, who is not a legal *persona*. In *K and G Mining Sydicate, supra*, the court further remarked, at p 7:

> "I take the view that nothing turns on the fact that the second and third respondents herein do not oppose the relief sought by the applicant in this application. On the facts of this case, this court cannot invoke rule 449 for the purposes sought by the applicant, even if second and third respondent are not opposed to the order sought. A party cannot confer jurisdiction to this court which it does not have."

Thus, the weight of authorities is simply not behind the applicants' averment that it matters not whether one cites the Ministry or the Minister. The fundamental point, which the applicants miss, is that the entity sued must have legal *persona*. The application is rendered null and void *ab initio* if the respondent lacks legal *persona*. The applicants have tried, without success, to wriggle out of this legal predicament. It is a predicament which they have brought upon themselves. The proper course of action to take is to strike this matter off the roll. It is unnecessary to delve into the other points *in limine*.

DISPOSTION

In the result, it is ordered that:

1. The application be and is hereby struck off the roll.
2. The applicants bear the respondents' costs jointly and severally, the one paying the others to be absolved.

MANYANGADZE J…….

Gumbo & Associates, applicants' legal practitioners

Civil Division of the Attorney General's Office, 2nd- 4th respondents' legal practitioners

Scanlen & Holderness, 5th respondent's legal practitioners